

Immigration law

Immigration law includes the national statutes, regulations, and legal precedents governing immigration into and deportation from a country. Strictly speaking, it is distinct from other matters such as naturalization and citizenship, although they are sometimes conflated.^[1] Countries frequently maintain laws that regulate both the rights of entry and exit as well as internal rights, such as the duration of stay, freedom of movement, and the right to participate in commerce or government.

Variation

Immigration laws vary around the world and throughout history, according to the social and political climate of the place and time, as the acceptance of immigrants sways from the widely inclusive to the deeply nationalist and isolationist. National laws regarding the immigration of citizens of that country are regulated by international law. The United Nations' International Covenant on Civil and Political Rights mandates that all countries allow entry to their own citizens.^[2] This principle is not always respected in practice. For instance, during the COVID-19 pandemic, Australia adopted a policy of denying entry to all individuals in particularly affected jurisdictions, including Australian citizens and permanent residents.^{[3][4]} Similarly, while states within the Schengen Area typically permit freedom of movement across borders, many states within the area implemented ad hoc border controls during the pandemic.

Immigration policy is the aspect of border control concerning the transit of people into a country, especially those that intend to stay and work in the country. Taxation, tariff and trade rules set out what goods immigrants may bring with them, and what services they may perform while temporarily in the country. Agricultural policy may make exemptions for migrant farm workers, who typically enter a country only for the harvest season and then return home to a country or region in the Global South (such as Mexico or Jamaica from where U.S. and Canada, respectively, often import temporary agricultural labour).^[5] An important aspect of immigration policy is the treatment of refugees,^[6] more or less helpless or stateless people who throw themselves on the mercy of the state they try to enter, seeking refuge from actual or purported poor treatment in their country of origin. Asylum is sometimes granted to those who face persecution or a well-founded fear of persecution on account of race, religion, nationality, membership of a particular social group, or political opinion.

As a result of investment-oriented immigration policies, states sometimes implement border control measures known as immigrant investor programmes that offer permanent residence or citizenship in return for investment.^{[7][8][9]} Immigrant investor programmes originated in the 1980s when tax havens in the Pacific and Caribbean began "cash-for-passport" programmes that facilitated visa-free travel and tax avoidance.^[10] Such programmes have sparked controversy in several countries. A lack of demonstrable economic benefits, and security concerns, have been among the most common criticisms. In 2014 the Canadian government suspended their golden visa programme (although, as of 2017, Quebec maintains its own golden visa programme).^[11] The implementation of such programmes in Europe has been criticised by the European Parliament,^[12] which approved a non-binding resolution that in 2014 declaring that an EU passport, which by definition provides its bearer the right to reside in any EU or EEA jurisdiction, should not have a "price tag".^[13]

Critical theory

Critical theory can be used to interpret the right of asylum^[14] and immigration law.^[15]

Control measures

To control immigration, many countries set up customs at entry points. Some common locations for entry points are airports and roads near the border. At the customs department, travel documents are inspected. Some required documents are a passport, an international certificate of vaccination, and an onward ticket. Sometimes travelers are also required to declare or register the amount of money they are carrying.^[16]

By country or territory

Countries, citizenship, and immigration law				
Country or Area	Nationality	Immigration	Details	Changes to immigration law
 US	United States nationality law	Immigration to the US Illegal immigration to the US	Citizenship may be granted after 5 years of permanent residence. Green Card Lottery	In 2025, the Trump administration imposed a \$100,000 fee for filing for an H-1B visa starting September 2025. ^{[1][17]}
 United Kingdom	British nationality law Some commonwealth citizens have right of abode in the UK, which, for most practical purposes, gives them the same rights as British Citizens in the UK.[citation needed]	Immigration to the UK Historical immigration to Great Britain Illegal immigration to the UK - After 20 years of continuous illegal but proven presence in the country ILR is provided.[citation needed]	A foreigner may apply for naturalisation after having had indefinite leave to remain for one year in addition to 5 years of residency, or (treaty nationals) may apply after having been resident in the United Kingdom for 5 years. Treaty nationals may enter the UK to reside there as self-sufficient migrant.	The law has been changed retrospectively in the past and likely to change retrospectively in the future.
 Canada	Canadian nationality law	Immigration to Canada Illegal immigration to Canada		
 Australia	Australian nationality law	Immigration to Australia Illegal immigration to Australia		
 New Zealand	New Zealand nationality law	Immigration to New Zealand		
 South Africa	South African nationality law	Immigration to South Africa Illegal immigration to South Africa	Citizenship may be applied for after 5 years of permanent residence. ^[18] Permit, visa, and other legal services exist ^[19]	
 Guernsey			Guernsey's inhabitants are full British citizens ^[20]	
 Jersey				
 Gibraltar			None of the overseas territories has its own nationality status, and most residents hold two forms of British nationality: British Overseas Territories citizenship (BOTC) and British citizenship.	
 Isle of Man			Citizenship is covered by UK law, and Manx people are classed as British citizens.	
 South Korea	South Korean nationality law	Immigration to South Korea Illegal immigration to South Korea	Citizenship may be applied upon meeting the requirements for naturalization. If the Korean government recognizes that you made an important contribution to the nation, you are eligible for F-5 permanent residence.[citation needed]	
 Hong Kong		Immigration to Hong Kong Mainland China issued a daily quota of 150 One Way Permits to mainland Chinese for Hong Kong settlement; ^[21] will receive Right of Abode (ROA) in Hong Kong, after 7 years continuous ordinary residence in Hong Kong; plus the right to apply for a HKSAR Passport .	A foreigner who is a Hong Kong Permanent ID Card holder may naturalise as a Chinese national with HKSAR Passport , if applicant: has settle in Hong Kong or Chinese territory; has near relatives of Chinese nationals; and/or other reasons deemed as legitimate. ^[22]	
 India	Indian nationality law	Illegal immigration to India	Citizenship may be granted after 12 years of residence (of which 1 year should be continuous).	
 Israel	Israeli nationality law	Aliyah Immigration to Israel from Arab lands Illegal immigration to Israel	Law of Return	
 European Union	Citizenship of the European Union	Immigration to Europe		
 Austria	Austrian nationality law	Immigration to Austria		
 Belgium	Belgian nationality law	Immigration to Belgium		
 Bulgaria	Bulgarian nationality law	Immigration to Bulgaria		
 Cyprus	Cypriot nationality law			

 Czech Republic	Czech nationality law	Immigration to the Czech Republic		
 Denmark	Danish nationality law	Immigration to Denmark		
 Estonia	Estonian nationality law	Immigration to Estonia		
 Finland	Finnish nationality law	Immigration to Finland		
 France	French nationality law	Immigration to France		
 Germany	German nationality law	Immigration to Germany	There are programs for Continental Refugees (https://de.wikipedia.org/wiki/Kontingentfl%C3%BCchtling) and Repatriates (https://de.wikipedia.org/wiki/Aussiedler_und_Sp%C3%A4taussiedler) but the rules are severely tightened to prevent as little new migrants as possible to benefit from them.	
 Greece	Greek nationality law	Immigration to Greece		
 Hungary	Hungarian nationality law		All immigration is banned. Foreigners can only be temporary expats.	
 Ireland	Irish nationality law	Immigration to Ireland		
 Italy	Italian nationality law	Immigration to Italy		
 Latvia	Latvian nationality law			
 Lithuania	Lithuanian nationality law			
 Luxembourg	Luxembourgian nationality law ^[23]			
 Malta	Maltese nationality law	Immigration to Malta		Until 21 September 1964, Maltese persons held British nationality, as Malta was a British Crown colony.
 Netherlands	Dutch nationality law	Immigration to the Netherlands	A visa after 5 years of continuous residence and sufficient integration. ^[24]	
 Poland	Polish nationality law			
 Portugal	Portuguese nationality law	Immigration to Portugal		
 Romania	Romanian nationality law	Immigration to Romania	Special arrangements for citizens of Moldova.	
 Slovakia	Slovakian nationality law			
 Slovenia	Slovenian nationality law	Immigration to Slovenia		
 Spain	Spanish nationality law	Immigration to Spain		
 Sweden	Swedish nationality law	Immigration to Sweden		
 Singapore	Singaporean nationality law	Immigration to Singapore		
 Norway	Norwegian nationality law	Immigration to Norway	A minimum of 7 years are required for citizenship. Citizens of other Nordic Council countries may naturalise after a two-year residence.	

Immigration visa categories by country or territory

This section is an attempt to classify and bring together information about immigration legislation on a number of countries with high immigration.

Regular immigration visa categories

Country / territory	Employer-Sponsored Work Visa	Independent Work Visa	Businessperson, Self-employed or Entrepreneur	Investor	Ph.D. or Scientist	Spouse
 US	Through <u>H1B</u> lottery, many applicants failed to receive a settlement after 6 years and had to leave the country.	<u>EB-1</u> Extraordinary Ability – for internationally recognized scientists, sportsman etc. ^[25]		<u>EB-5</u> : minimum investment of <u>\$800,000</u> .	PhDs are generally allowed to apply for an employer-independent <u>EB2 visa</u>	
 United Kingdom	Tier 2 – settlement (ILR) after 5 years. A limit on number of Tier 2 migrants per year coming from outside the country was introduced by new government which makes it more difficult to find an employer willing to sponsor the visa if applying from outside the UK. ^[26] <u>Tier 1 General</u> – settlement (ILR) after 5 years. A limit on 1000 Tier 1 migrants per year introduced by new government. Besides that the migration legislation changes on average every six months which makes Britain not attractive for skilled migrants looking for a second nationality. ^[27] Treaty nationals may enter the UK for self-employment. ^[28]	<u>Tier 1 Entrepreneur</u> , ^[29] Treaty nationals may enter the UK to work or provide services.	<u>Tier 1 Investor</u>	There is no specific category here but it is easier for universities (as opposed to businesses) to acquire a Tier 2 sponsorship licence. ^[30]	ILR is provided after 5 years in marriage or partnership and living in the country. ^[31]	British citizenship obtained as a right anybody who was in the UK before 1 After 1983, it can be obtained by birth if at least one parent was settled there. It is also available as of right to people of whom one parent is a British citizen otherwise than by descent. ^[32] All other classes of British Nationality do not carry the right of abode in the UK.
 Canada ^[37]	<u>Temporary Foreign Worker (TFW)</u> ^{[38][40]}	Available. ^[39] The Federal Skilled Trades Program is for skilled workers who want to become <u>permanent residents</u> based on their qualification in a <u>skilled trade</u> . Skilled trades for the Program are organized under these <u>NOC groups</u> : ^[40] ▪ industrial, electrical and construction trades ▪ maintenance and equipment operation trades ▪ supervisors and technical jobs in natural resources, agriculture and related production ▪ processing, manufacturing, and utilities supervisors, and central control operators ▪ chefs and cooks ▪ butchers and bakers	Business people ^[41] can enter and work in Canada if they qualify under one of the following: ^[41] ▪ <u>Canada–United States–Mexico Agreement (CUSMA)</u> ▪ <u>Other Free Trade Agreements (FTAs)</u>^[41] ▪ <u>General Agreement on Trade in Services (GATS)</u>	To work in Canada as an investor, one must: ^[41] meet any other rules of CUSMA; have a work permit; and be involved in planning either a) a large amount of trade in goods or services, mainly between Canada and their home country; or b) a large investment in Canada by that person or their company.	Federal Skilled Worker Program.	Eligible person: sponsor their spouse or partner to become permanent resident but must be to: ^[42] ▪ support them financially; and ▪ ensure they do not need social assistance from government
 Australia		Available ^[45]			Skilled Independent visa	

					(Subclass 189) and Skilled Nominated visa (subclass 190)	
 New Zealand			Available			
 Argentina	Electronic Entry Processing (TIE 24 H) ^{[46][1]}			Not Available		Those overage w/ married are exem/ the 2-years requir/ for the citizenship.
 South Africa	Corporate worker permit. ^[50]	General work permit, Quota work permit, exceptional skills work permit and Intra-company transfer work permit. ^[51]	Business permit. Minimum foreign capital investment ZAR 2,5 Million into book value of business which may be reduced on application. Minimum of 5 South African citizens/residents to be employed. ^[52]	See Business permit. ^[53]	No specific category. May fall under Exceptional Skills or Quota work permit. ^[54]	Spousal visa. Procohabitation and s finances. ^[55]
 Isle of Man		Similar to British Tier1 General, but does not lead to EU nationality	Similar to British Tier1 Entrepreneur, but does not lead to EU nationality			
 South Korea	If you have lived more than 5 years under a D-7, D-8, D-9, E-1, E-2, E-3, E-4, E-5, E-7 or F-2 visa.	If you have internationally recognized extraordinary ability in science, business, culture, sports or education.	If you are over 60 and receive income via pension from overseas.	If you invest \$2 million. If you invested only \$500,000, you need to stay more than 3 years on a D-8 visa. If you invest \$500,000 in real estate of Jeju, Incheon Free Economic Zone, Busan's Haeundae, Pyeongchang or Yeosu, you are given a F-2 residence visa and 5 years later, F-5 permanent residence. ^[56]	If you have a PhD in a high-tech field and are employed by a Korean firm, earning 4 times the average GNI in Korea. If you only have a bachelor's in a high-tech field or a recognized technical certificate issued in Korea, you need to have stayed for at least 3 years and earn 4 times the average GNI in Korea.	If you have stayed Korea for more than 5 years under a F-2 and are the spouse Korean or foreigner a F-5 permanent residence visa.
 Hong Kong	General Employment Policy (GEP); will receive Right of Abode (ROA) in Hong Kong, after 7 years continuous ordinary residence in Hong Kong.	General Points Test (GPT) Top Talent Pass Scheme (TTPS)		Capital Investment Entrant Scheme (CIES); you need to invest HK\$10 million except on real estate; ^[58] will receive ROA in Hong Kong, after 7 years continuous ordinary residence in Hong Kong.	Passing GPT within Quality Migrant Admission Scheme (QMAS) ^[59]	
 India						
 Israel		Not available				

 European Union	Varies by member state	<u>Blue Card (European Union)</u>				
 Austria		May be available in the future, called Rot-Weiß-Rot-Card				
 Cyprus	It is considered to be very unlikely to get nationality through work route	Not available				
 Czech Republic		Not available				
 Denmark	Available: Danish Green Card					
 Finland						
 France		Not available				
 Germany		Not available				
 Hungary						
 Ireland		Not available				
 Netherlands	Highly-skilled migrant' visa: available only for employers to apply on employee's behalf. Employer must be recognized as a sponsor by IND. Specific salary requirements apply. ^[61]	<i>Zoekjaar</i> ('search year') visa: a one-year visa available to all students who recently graduated from a university or a college. No other requirements (e.g. sponsor/employer). ^[62]	A visa is available for self-employed people. Granting of such is determined based on innovative nature of your business, which must be assessed by a certain agency (RVO). ^[63]			
 Spain	Not available					
 Sweden	^[66]		^[67]			
 Norway						<u>Min 4 years</u>
Country or Area	Employer Sponsored Work Visa	Independent Work Visa	Businessperson, Self-employed or Entrepreneur	Investor	Ph.D. or Scientist	Spouse

General guidelines by country or territory

Country / territory	Requirements and restrictions	Employed dependants	Social benefits	Deprivation of nationality	Forgoing other nationalities required for naturalization?	Deprivation of original nationality for those who naturalise in foreign countries?
 US		The dependant of a resident visa holder may not work.			No	No, but foreign earnings are liable to taxation.
 United Kingdom	Before settlement: No more than 180 days spent overseas within 5 years, no more than 90 days per trip. After settlement: Settlement would be cancelled after a certain number of days spent abroad. A single parent may immigrate if one is the sole supporter.	The dependant of a resident visa holder is allowed to work.	Before settlement: No access to public funds. After settlement: Accessible.	<u>Dual nationals</u> may be deprived of their nationality for engaging in terrorism.	No	No
 Canada					No	
 Australia						
 New Zealand						
 Israel				[68]	Yes, unless citizenship obtained by Law of Return	
 Germany					Yes, unless the prior nationality held was one of the European Union, Norway, or Switzerland; or if the applicant cannot approach the authorities of their previous country for reasons of personal safety.	Yes, unless the nationality acquired is one of the EU, Switzerland, or Norway; or if the applicant obtained permission from the German government prior to submitting an application for naturalisation.
 Ukraine						Yes
 Norway				Legitimately naturalised persons can be deprived of their nationality.	Yes, unless the applicant cannot approach the authorities of their previous country for reasons of personal safety, or if the authorities demand a fee considered too high.	Yes
 Russia					Yes	No
 Azerbaijan						Yes
 China					Yes	Yes
 Denmark						Yes
 Japan					Yes	Yes
 India						Yes

See also

- Asylum shopping
- Refugee identity certificate
- Migrant worker
- Immigration country
- Immigration policy
- Impediment to expulsion
- Economic citizenship

- Points-based immigration system
- Immigrant investor programs

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Notes

- i. The Electronic Entry Processing (TIE 24 H) system allows nationals from visa-exempt countries to apply online for authorization to engage in professional, artistic, business, or academic activities. This system has replaced the previous requirement of completing white entry forms on aircraft before entering the country. To begin the application process, applicants must access the relevant online platform and subsequently contact their chosen consular representation for further steps.
- ii. Defined by the Government of Canada as those who "come to do business under a free trade agreement."
- iii. Such as the Canada–Chile FTA, the Canada–Peru FTA, the Canada–Colombia FTA, or the Canada–Korea FTA

External links

- Citizenship Laws of the World – the most comprehensive although a little bit outdated report by United States Office of Personnel Management Investigations Service PDF (<https://web.archive.org/web/20060404042127/http://www.opm.gov/extra/investigate/IS-01.pdf>), copy: PDF (<http://www.multiplecitizenship.com/documents/IS-01.pdf>)

